45. FortyFive

Draft v0.1, 15 Oct 2026

Tutor Agreement

For IB graduates, graduate tutors aged 17 and IB teachers who teach on FortyFive

---

Before you sign. This is a draft. It has not yet been checked by our lawyer, and it is not in force until it has been, and until both sides have signed the final version. Words in *[square brackets and italics]* are filled in by FortyFive before the agreement is sent to you.

The parties

1. FortyFive. *[Legal name of the business]*, a *[sole proprietorship / LLP / private limited company]* with its registered address at *[address]*, GSTIN *[GSTIN]*, which runs the website and app called FortyFive ("**FortyFive**", "**we**", "**us**").

2. The Tutor ("**you**").

Full name, as on your ID	Date of birth
Address	PAN
Email	Mobile

3. The Guardian (only for Track B, a graduate tutor aged 17). The parent or legal guardian of the Tutor, who signs Schedule 6.

Full name	Relationship to the Tutor
Address	PAN
Email	Mobile

Your track (FortyFive ticks one after your checks)

☐ **Track A. IB graduate, 18 or over.** A verified 6 or 7 in each subject you teach.

☐ **Track B. Graduate tutor, 17.** A verified 7 in each subject you teach. Your Guardian co-signs this agreement and receives your payouts.

☐ **Track C. IB teacher.** You teach, or have taught, an IB Diploma subject at a school.

☐ **Founding tutor.** One of the first ten tutors: FortyFive takes no fee on your lessons until 30 April 2027 (clause 6.4).

What you are approved to teach

Subject	Level	Grade checked	Checked on (date, by whom)

In short

This summary is here to help you read the agreement. If it ever seems to say something different from the clauses, the clauses are what count.

- You are an independent tutor, not our employee. You set your own prices and hours.
- You keep **90%** of every lesson and **85%** of every coursework coaching hour. Students pay nothing on top. There is no membership, no lead fee and no way to pay to rank higher.
- Every lesson, message and payment stays on FortyFive. You never share contact details with a student, and never meet or message an under-18 student anywhere else.
- Lessons for under-18s run only between 7 am and 9 pm, in the student's local time. Parents can read every message and join any lesson.
- If you are worried a child is being harmed, you tell our Safeguarding Lead straight away, and the law may also require you to tell the police.
- In coursework you teach and ask questions. You never write, edit, translate, correct or mark up a student's work, and no files change hands.
- No IB papers, markschemes or other people's paid material, ever.
- Either of us can end this agreement with 14 days' notice. We can suspend you at once if there is a safety concern.

1. What the words mean

1.1 **Platform** means the FortyFive website and apps, including lessons, messages, bookings and payments.

1.2 **Student** means a person learning through the Platform. A **Parent** is a Student's parent or legal guardian who has an account linked to that Student. An **Under-18** is a Student who is under 18 years old.

1.3 **Lesson** means a tutoring session booked and held on the Platform. A **Coaching Session** means an hour of coursework coaching under Schedule 3.

1.4 **Price** means the amount a Parent or Student pays for a Lesson or Coaching Session, as shown on the booking. **Your Share** is the part of the Price paid to you under Schedule 2. **Our Fee** is the rest.

1.5 **Safeguarding Lead** means the adult FortyFive names as responsible for safety reports, currently *[name]*, reachable at *[safety email]* and *[phone]*.

1.6 **Policies** means our Code of Conduct and Safeguarding Rules (Schedule 5), our Coursework

Code, our Privacy Notice and our Refund Policy, as published on the Platform.

1.7 **Working day** means a day other than a Sunday or a public holiday in Tamil Nadu.

2. What this agreement is

2.1 This agreement lets you offer Lessons (and, if you qualify, Coaching Sessions and Courses) to Students through the Platform. FortyFive runs the Platform, checks tutors, takes payments and pays you.

2.2 You are an independent professional. Nothing in this agreement makes you our employee, partner or agent. You decide whether to accept a booking, how much to charge and when you are available, within the rules in this agreement.

2.3 We do not promise you any number of bookings or any level of income.

2.4 This agreement is made up of these clauses, the Schedules and the Policies. If they conflict, the clauses win over the Schedules, and the Schedules win over the Policies.

3. Joining, and staying eligible

3.1 Your profile goes live only after you have passed every check for your track in Schedule 1 and signed this agreement.

3.2 You confirm that everything you have told us, and every document you have given us, is true and your own. Giving us false information, or someone else's results, ends this agreement at once.

3.3 You must tell us within 48 hours if anything changes that could affect whether you may teach children. This includes being charged with or investigated for any offence, any complaint about your conduct with a child, any action by a school or employer, or any change to your IB results.

3.4 We repeat some checks every *[12]* months, and whenever the law or our insurer asks us to. You agree to take part.

4. Graduate tutors aged 17 (Track B)

4.1 Under section 11 of the Indian Contract Act, 1872, a person under 18 cannot enter a binding contract. So for Track B, your Guardian is the party who is bound by the money and liability parts of this agreement, by signing Schedule 6. You sign to show that you have read the rules and will follow them.

4.2 Your payouts go to your Guardian's bank account, in your Guardian's name.

4.3 Your Guardian can see your bookings, your messages with Students and Parents, and your earnings on the Platform.

4.4 On Track B you may teach only IB Diploma Students, only online on the Platform, and only between 7 am and 9 pm in the Student's local time. You may not offer Coaching Sessions (Schedule 3).

4.5 Your profile shows "Graduate tutor, 17".

4.6 When you turn 18 you move to Track A once you have passed the Track A background check and signed a fresh copy of this agreement in your own name. Until then, Track B continues.

5. How you teach on FortyFive

5.1 **On the Platform only.** Every Lesson, Coaching Session, message, file and payment with a Student or Parent you meet through FortyFive happens on the Platform. You will not give or ask for a phone number, email address, social media handle, home address or any other way to make contact, and you will not try to get around the Platform's filters that hide them.

5.2 **Hours.** Lessons and Coaching Sessions with Under-18s take place only between 7 am and 9 pm in the Student's local time. The Platform does not offer slots outside these hours.

5.3 **Parents.** A Parent may read every message between you and their child, and may join any Lesson as an observer. You will not discourage this.

5.4 **Requests.** You will accept or decline each booking request within *[24 hours]*. If you do not reply, the request lapses and the Parent is refunded.

5.5 **Turning up.** You will join on time, with a working camera and microphone, in a quiet, suitable place, dressed as you would be for a school. If you cannot make a Lesson, you will cancel on the Platform as early as you can. Late cancellations and no-shows are handled under Schedule 2.

5.6 **Honest teaching.** You will not promise or suggest any grade outcome, and you will tell a Student if you think they do not need more lessons.

5.7 **Your own students.** If you teach at a school (Track C), you will not take paid Lessons or Coaching Sessions on the Platform with any Student you teach, assess or supervise at that school.

6. Fees and payouts

6.1 You keep **90%** of the Price of every Lesson and **85%** of the Price of every Coaching Session. Our Fee is the rest. Our Fee already includes the GST on our Fee and the payment and transfer charges, so Students and Parents pay nothing on top of the Price. Schedule 2 shows exactly where the money goes.

6.2 We will never charge you a membership, a sign-up fee, a lead fee or a fee for a first lesson, and nobody can pay us to rank higher in search.

6.3 **Payouts.** We pay Your Share for a Lesson or Coaching Session after it has taken place and the 48-hour problem window in clause 6.6 has closed, in the next weekly payout run. For a Coaching Session, payout also waits for your help log (Schedule 3).

6.4 **Founding tutors.** If the Founding tutor box is ticked, we take no fee on your Lessons booked and held before 30 April 2027, and you receive the full Price less only the payment and transfer charges. After that date clause 6.1 applies.

6.5 **Changing our fee.** We will give you at least 60 days' written notice before we change Our Fee. If you do not accept the change you may end this agreement before it takes effect, and the old fee applies to every booking made before the change.

6.6 **Problems.** If a Parent or Student reports a problem with a Lesson or Coaching Session within 48 hours, we hold Your Share for it while a person at FortyFive looks into it. We will tell you what was reported, hear your side, and decide within 7 working days.

6.7 **Tax.** You are responsible for your own income tax and, if your turnover requires it, your own GST registration. FortyFive deducts tax at source where the law requires (at the time of writing, 0.1% under the Income-tax Act provisions for e-commerce operators, which replaced section 194-O) and gives you the certificates. You must give us a valid PAN; without one, the law requires us to deduct at a higher rate.

6.8 **Bank details.** Payouts go only to a bank account in your name (or, on Track B, your Guardian's name) that has been verified through our payment provider.

7. Your prices

7.1 You set your own price per hour for Lessons and, if you coach, a separate price per hour for Coaching Sessions.

7.2 The price shown to Students is the full Price. You may change your prices at any time, but the change applies only to bookings made after it.

8. Coursework coaching

8.1 Only tutors aged 18 or over on Track A or Track C, who have passed our integrity course, may offer Coaching Sessions.

8.2 If you coach, you agree to the rules in Schedule 3. In short: you teach the skills the criteria reward and ask questions; you never write, rewrite, edit, translate, correct or mark up a Student's work; no files change hands; every session is recorded; and you file a help log within 24 hours.

8.3 Breaking the coaching rules is serious misconduct under clause 14.3, because it can cost a Student their IB Diploma.

9. Keeping children safe

9.1 You will follow the Code of Conduct and Safeguarding Rules in Schedule 5, and complete our safeguarding training before your profile goes live and again every *[12]* months.

9.2 If a Student tells you something, or you see or hear something, that makes you worried a child is being harmed or is at risk, you will tell the Safeguarding Lead straight away through the Report button or the safety contacts in clause 1.5. You will not investigate it yourself or confront anyone.

9.3 The Protection of Children from Sexual Offences Act, 2012 (section 19) requires anyone who knows of, or suspects, a sexual offence against a child to report it to the police or the Special Juvenile Police Unit. Telling us does not take that duty away from you. If a child is in immediate danger, call 112 first.

9.4 You will co-operate with any review by FortyFive, the police or any other authority, and keep it confidential except as the law allows.

9.5 We may suspend your profile and hold payouts at once while we look into a safety concern.

We will tell you as much as we safely can.

10. Recordings and personal data

10.1 Every Coaching Session is recorded. A Lesson is recorded if the Parent chose recording when they set up the account. By signing, you agree to be recorded in those sessions.

10.2 Recordings are kept for *[90 days]*, or longer if a report or review needs them. They can be opened only by the Safeguarding Lead and our integrity reviewers, and every opening is logged. We never use recordings for marketing or training AI without your separate, written consent.

10.3 You will not record, screenshot or copy a Lesson, a Coaching Session or a message thread yourself.

10.4 You will use a Student's personal data only to teach them on the Platform. You will not keep it, copy it off the Platform, share it or use it to contact them. This helps both of us meet the Digital Personal Data Protection Act, 2023 and its Rules, which give children's data special protection.

10.5 Our Privacy Notice explains what we do with your own data. Your profile shows your first name and the initial of your last name, your track, your verified subjects and your reviews. It never shows your contact details.

11. Teaching materials and courses

11.1 You keep the copyright in teaching material you create. When you share it with a Student on the Platform, you give FortyFive a non-exclusive licence to host and show it to that Student for as long as they need it.

11.2 You will never upload, share, show or teach from IB past papers, IB markschemes or any other International Baccalaureate copyright material, or from paid material you do not have the right to share (such as revision sites, textbooks or another teacher's resources).

11.3 You will not use the IB name or logos in a way that suggests FortyFive or you are approved or endorsed by the International Baccalaureate Organization.

11.4 If you lead a Course, Schedule 4 also applies.

12. Profiles and reviews

12.1 Everything on your profile must be true. Grades appear as "verified" only after we have checked them against your official IB results.

12.2 Only a Student or Parent who paid for a finished Lesson or Coaching Session can review it. You may reply once to each review. You may not ask for, write, buy or swap reviews, or offer anything in return for a good one.

12.3 We remove a review only if it is abusive, reveals personal data, or is about something other than the teaching. We do not remove reviews because they are negative.

13. Students you meet through FortyFive

13.1 While this agreement lasts, you will not teach, coach or take payment from any Student or Parent you met through the Platform except through the Platform.

13.2 For 12 months after this agreement ends, you will not contact any Under-18 you met through the Platform, for any reason, except through the Platform. This is a safeguarding rule, so that every contact between an adult and a child we introduced stays visible to their Parent.

14. Ending this agreement

14.1 Either of us may end this agreement at any time by giving 14 days' notice in writing (an email is enough).

14.2 When notice is given, you will hold every Lesson already booked during the notice period, unless the Parent agrees to cancel, in which case they are refunded in full.

14.3 We may suspend you at once, and end this agreement at once by written notice, if:

(a) we have a safeguarding concern about you;

(b) you gave us false information or documents;

(c) you contact an Under-18 outside the Platform or share contact details;

(d) you write, edit or mark up a Student's coursework, or help them break their school's or the IB's rules;

(e) you share IB papers, markschemes or material you have no right to share; or

(f) you break this agreement in another serious way, or keep breaking it after we have warned you.

14.4 When this agreement ends, we pay Your Share for every Lesson and Coaching Session already held, less any amount held under clause 6.6 until it is decided. Bookings not yet held are cancelled and refunded in full.

14.5 Clauses 9, 10, 11, 13, 15 and 19 keep applying after this agreement ends.

15. Responsibility

15.1 You are responsible for the quality and content of your own teaching.

15.2 You will make good any loss FortyFive suffers because you broke the law, someone's copyright or this agreement's rules on safeguarding, coursework or data.

15.3 Except for fraud, deliberate wrongdoing or a breach of clause 9 or 10, neither of us is liable to the other for more than the total of Our Fee earned from your bookings in the 12 months before the claim, and neither of us is liable for indirect loss or lost profit.

16. Insurance

16.1 FortyFive holds *[type of cover, insurer, limit]*, which covers *[what it covers]*. This does not cover your own conduct outside the Platform.

17. Notices

17.1 We send notices to the email address at the top of this agreement (and, for Track B, to your Guardian's too). You send notices to *[legal email]*.

17.2 Safety reports never wait for a notice: use the Report button or the safety contacts in clause 1.5.

18. Changes to the Policies

18.1 We may update the Policies to keep children safer, to follow the law, or to improve the Platform. We will give you at least 30 days' notice of a change that affects you, except where a change is needed sooner for safety or by law.

18.2 If you do not accept a change, you may end this agreement before it takes effect.

19. If we disagree

19.1 We will first try to settle any disagreement by talking. Write to our Grievance Officer, *[name]*, at *[email]*, who will reply within 15 days.

19.2 If it is not settled within 30 days, either of us may refer it to arbitration by a sole arbitrator under the Arbitration and Conciliation Act, 1996. The seat of arbitration is Coimbatore, and the language is English.

19.3 This agreement is governed by the laws of India. Subject to clause 19.2, the courts at Coimbatore have exclusive jurisdiction.

20. General

20.1 This agreement may be signed electronically, which is valid under the Information Technology Act, 2000, or on paper, and in separate copies that together make one agreement.

20.2 You may not transfer this agreement to anyone else. We may transfer it to a business that takes over the Platform (for example, a company formed to run FortyFive), and will tell you if we do.

20.3 If any part of this agreement cannot be enforced, the rest still applies.

20.4 This agreement, with its Schedules and the Policies, is the whole agreement between us about your teaching on FortyFive.

Schedule 1

The checks, by track

Every check must be passed before your profile goes live. "Verified" grades are checked against your official IB results document, downloaded by us from the IB or seen by us in the original.

Check	Track A	Track B	Track C
Identity and age, through DigiLocker or an original ID	✓	✓	✓
Verified IB results: a 6 or 7 in each subject taught	✓		
Verified IB results: a 7 in each subject taught		✓	
Teaching credentials and IB teaching experience			✓
Police verification or background check	✓		✓
Reference from the DP Coordinator or head of the Tutor's school		✓	
Reference from a teacher or employer	✓		✓
Guardian's signature on Schedule 6, with the Guardian's own ID check		✓	
A 15-minute demo lesson, watched by FortyFive	✓	✓	✓
Safeguarding training, with a short test	✓	✓	✓
Signed Code of Conduct (Schedule 5)	✓	✓	✓
Integrity course (only to offer Coaching Sessions)	✓		✓

Schedule 2

Where the money goes

A Rs 1,000 lesson

The Parent pays	Rs 1,000.00
You receive (90%)	**Rs 900.00**
Our Fee (10%), which pays for:	Rs 100.00
GST on Our Fee (18%, included)	Rs 15.25
Payment charge (2% + GST) and transfer charge to you (0.25% + GST)	Rs 26.26
What FortyFive keeps	Rs 58.49

A Rs 1,500 coaching hour

The Parent pays	Rs 1,500.00
You receive (85%)	**Rs 1,275.00**
Our Fee (15%), which pays for:	Rs 225.00
GST on Our Fee (18%, included)	Rs 34.32
Payment and transfer charges	Rs 39.16
Integrity reviews (an IB teacher reviews 1 in 10 sessions)	Rs 50.00
What FortyFive keeps	Rs 101.52

The payment and transfer charges are our payment provider's rates when this draft was written. If they change, Our Fee does not: the difference is ours to absorb.

Cancellations and no-shows

What happens	The Parent gets back	You receive
The Student cancels more than 24 hours before	Everything	Nothing
The Student cancels within 24 hours, or does not join within 15 minutes of the start	Half the Price	Half of Your Share
You cancel more than 24 hours before	Everything	Nothing
You cancel within 24 hours, or do not join	Everything	Nothing, and it counts towards a review if it happens 3 times in 90 days
A problem is reported within 48 hours	Decided by a person at FortyFive within 7 working days	Held until then

Schedule 3

Coursework coaching

The IB treats help from tutors that goes beyond what the subject guide allows as a problem for the Student, and work written even partly by someone else (or by AI) is not the Student's own. These rules exist so that our coaching can never cost a Student their Diploma.

You may

- explain what each assessment criterion asks for, and what separates the levels;
- teach the methods: research, choosing and judging sources, collecting and analysing data, structuring an argument, referencing;
- help a Student find and narrow their own topic and research question, by asking questions;
- talk through their ideas and plans, and ask questions that make them think harder;
- use your own examples, or published examples the Student's school allows, to show a skill.

You must never

- write, rewrite, edit, proofread, translate or polish any part of the work;
- take, open, mark up or annotate the Student's file, or have it shared on screen for you to correct;
- predict a grade or mark for the work;
- give the Student a research question, thesis, data set, analysis or sources they have not found themselves;
- help with any work the Student's school says must be done without help.

Hour caps, per piece of work

Internal Assessment	4 hours
Extended Essay	6 hours
TOK essay	3 hours
TOK exhibition	2 hours

Help logs

Within 24 hours of every Coaching Session you file a help log on the Platform: what was covered, what questions you asked, and the next step the Student chose for themselves. The Student adds their own note and can show the log to their supervisor. Your payout for the session waits for the log.

Integrity reviews

An IB teacher working for FortyFive reviews the recording of 1 in every 10 Coaching Sessions, chosen at random, and any session that is flagged. If a review finds help beyond these rules, we may refund the session, end this agreement under clause 14.3, and tell the Parent.

Schedule 4

Leading a course

This Schedule applies only if FortyFive accepts you as the lead of a Course.

1. **Who can lead.** A tutor with a verified 7 in the subject, or a Track C teacher of the subject.
2. **Your share.** You receive 70% of the net sales of your Course. Net sales are the Price less the GST included in it and the payment charge. Free places, which anyone can ask for, earn nothing for either of us.
3. **Example.** A Rs 1,499 Course: GST included Rs 228.66; payment charge Rs 35.38; net Rs 1,234.96; **you receive Rs 864.47**; FortyFive keeps Rs 370.49 for hosting, video, checks and support.
4. **Payment.** Monthly, by the 10th of the following month, with a statement of every sale and refund.
5. **Rights.** You keep the copyright in your Course. You give FortyFive an exclusive licence to sell and host that Course for *[2 years]* from launch, and a non-exclusive licence after that for as long as it stays on sale. You may not sell the same Course elsewhere during the exclusive period.
6. **Accuracy.** A FortyFive subject lead checks every Course before launch. You will fix any error reported to you within 7 days, and every correction is published on the corrections page.
7. **Own words only.** The Course must be your own work, in your own words, and must contain no IB papers, markschemes, criteria text or other material you do not have the right to use.

Schedule 5

Code of Conduct and Safeguarding Rules

Each line is a promise. Please initial each one.

	I will	Initials
1	keep every Lesson, Coaching Session, message, file and payment on FortyFive.	
2	never give or ask for a phone number, email, social handle or address, and never try to get around the Platform's filters.	
3	never meet a Student in person, or contact an Under-18 anywhere other than the Platform.	
4	teach Under-18s only between 7 am and 9 pm in their local time.	
5	welcome a Parent who joins a Lesson, and never ask a Student to keep anything from their Parent.	
6	never give gifts, ask for favours, or talk about personal, romantic or sexual matters with a Student.	
7	keep my camera on, my background suitable, and dress as I would for a school.	
8	never record, screenshot or copy a Lesson or a message.	
9	report any worry about a child's safety to the Safeguarding Lead straight away, and to the police where the law requires, without investigating it myself.	
10	never write, edit, correct or mark up a Student's coursework, or help them break their school's or the IB's rules.	
11	never use IB papers, markschemes or material I do not have the right to share.	
12	never promise a grade, and tell a Student honestly if they do not need more lessons.	
13	tell FortyFive within 48 hours of anything that could affect whether I may teach children.	

Schedule 6

The Guardian's agreement (Track B only)

I am the parent or legal guardian of the Tutor named at the start of this agreement, who is 17 years old.

1. I agree to this Tutor Agreement and its Schedules, and I accept the money and liability parts of it as the contracting party for the Tutor, as clause 4.1 explains.
2. I give my consent, as the Tutor's parent, for FortyFive to process the Tutor's personal data as its Privacy Notice describes, including the identity check, the reference from the Tutor's school and the recording of Lessons.
3. I agree that the Tutor's payouts are paid to my bank account below, and that I am responsible for declaring that income as the law requires.
4. I will be able to see the Tutor's bookings, messages and earnings on the Platform, and I will raise any concern about them with FortyFive.
5. I understand that the Tutor may teach only IB Diploma Students, online, between 7 am and 9 pm in the Student's local time, and may not offer coursework coaching.
6. This Schedule ends when the Tutor turns 18 and signs this agreement in their own name, or when the agreement ends, whichever is first. Payouts for Lessons already held are still paid to me.

Bank account holder's name

Account number

IFSC

Bank and branch

Signatures

By signing, each person below confirms they have read this whole agreement, including its Schedules, and agrees to it.

Signed by the Tutor

Signature	Full name, in capitals
Date	Place

Signed by the Guardian (Track B only)

Signature	Full name, in capitals
Date	Place

Signed for FortyFive, by an authorised signatory

Signature	Full name, in capitals
Date	Place
Designation	

FortyFive is not affiliated with or endorsed by the International Baccalaureate Organization. “International Baccalaureate” and “IB” are its trademarks.